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ADVANCE SHEET HEADNOTE
June 17, 2024

2024 CO 47

No. 23SA293, *People v. Johnson*—Scope of an Investigatory Stop—Searches and Seizures—Drug-Detection Dogs.

In this interlocutory appeal, the supreme court considers the People's challenge to a district court's order suppressing evidence that police discovered in the defendant's vehicle after stopping him for two traffic violations. The court suppressed the evidence based on its determination that the officers unlawfully prolonged their investigatory stop of the defendant by waiting for a drug-detection dog to arrive to conduct a sniff of his car for illicit drugs.

The supreme court concludes that the district court's findings regarding the nature of Johnson's seizure were clearly erroneous. Because the officers developed probable cause to arrest the defendant, and in fact arrested him, they no longer needed to justify his detention as part of the original investigatory stop. Accordingly, the court reverses the district court's suppression order and remands for the court to determine whether probable cause existed to search the vehicle following the defendant's arrest.

The Supreme Court of the State of Colorado
2 East 14th Avenue • Denver, Colorado 80203

2024 CO 47

Supreme Court Case No. 23SA293
Interlocutory Appeal from the District Court
Adams County District Court Case No. 22CR1144
Honorable Brett M. Martin, Judge

Plaintiff-Appellant:

The People of the State of Colorado,

v.

Defendant-Appellee:

Sean Terrance Johnson.

Order Reversed
en banc
June 17, 2024

Attorneys for Plaintiff-Appellant:
Brian S. Mason, District Attorney, Seventeenth Judicial District
Todd Bluth, Senior Deputy District Attorney
Cameron Munier, Senior Deputy District Attorney
Brighton, Colorado

Attorneys for Defendant-Appellee:
Megan A. Ring, Public Defender
Jackson A. Laughlin, Deputy Public Defender
Brighton, Colorado

JUSTICE BERKENKOTTER delivered the Opinion of the Court, in which **CHIEF JUSTICE BOATRIGHT**, **JUSTICE MÁRQUEZ**, **JUSTICE HOOD**, **JUSTICE GABRIEL**, **JUSTICE HART**, and **JUSTICE SAMOUR** joined.

JUSTICE BERKENKOTTER delivered the Opinion of the Court.

¶1 The People bring this interlocutory appeal under C.A.R. 4.1, challenging the district court's order suppressing evidence that police officers found in Sean Terrance Johnson's vehicle after stopping him for two traffic violations. The court suppressed the evidence based on its finding that the officers unlawfully prolonged their investigatory stop by waiting for a drug-detection dog to arrive to conduct a sniff of his car for illicit drugs.

¶2 Because the officers acquired probable cause to arrest Johnson for possession of drug paraphernalia during the stop, and in fact arrested him, we conclude that they no longer needed to justify the detention as part of an investigatory stop. Accordingly, we reverse the court's suppression order and remand the case for the court to consider whether probable cause existed to search the vehicle following Johnson's arrest.

I. Facts and Procedural History[1]

¶3 On the afternoon of April 12, 2023, while on a routine patrol, Adams County Sheriff's Deputy Robert Bacigalupo noticed a Dodge Charger make a U-turn without signaling. Believing this to be a traffic violation, Deputy Bacigalupo

[1] We derive this information from the transcript of the hearing on the motion to suppress and the transcript of the district court's subsequent oral ruling on the motion.

relayed his observation to Sergeant Daniel Monares, who was also patrolling the area. When Sergeant Monares saw the Charger make another turn without signaling, he activated the lights on his patrol vehicle and pulled the car over.

¶4 After the car pulled into a parking lot and stopped, Sergeant Monares approached and identified himself to the driver, Johnson. Deputy Bacigalupo also responded to the scene. Sergeant Monares asked Johnson for identification, along with his registration and proof of insurance. Johnson supplied his name and date of birth but was unable to produce a driver's license, registration, or proof of insurance.

¶5 Both officers noticed an empty shell casing in the front seat cupholder of Johnson's vehicle. The casing raised the officers' suspicions. The officers also noticed that Johnson—who appeared unusually nervous—was wearing a camouflage bag strapped to his chest with a folding knife clipped to it. Based on their experience in law enforcement and their personal experiences carrying weapons, the officers recognized the bag as one frequently used to carry concealed weapons, typically handguns. The officers asked Johnson whether there were other weapons in the vehicle. Johnson first said there were none but later indicated he had a shotgun in the trunk.

¶6 While Sergeant Monares returned to his patrol vehicle to check for any outstanding warrants for Johnson's arrest, Deputy Bacigalupo asked Johnson to

step out of his car. The officers also requested that a K-9 unit respond to the scene to conduct a "free air" sniff, i.e., a sniff around the outside of a vehicle, for narcotics.

¶7 After initially refusing Deputy Bacigalupo's request to step out of the car, Johnson eventually complied, removing the camouflage bag and leaving it on the front seat in the process. Deputy Bacigalupo then ordered Johnson to turn around and place his hands on his head to perform a pat-down. While doing so, Deputy Bacigalupo felt what he immediately recognized as a "bulbous pipe" in Johnson's pocket. Johnson admitted that the pipe was his and told Deputy Bacigalupo that he'd used it the night before to stay awake for his job at a hospital.

¶8 Upon discovering the pipe, Deputy Bacigalupo handcuffed Johnson and arrested him. When he attempted to read Johnson his *Miranda* rights, Johnson stopped him, telling Deputy Bacigalupo that he knew them. Sergeant Monares, who by then had confirmed that there were no outstanding warrants for Johnson's arrest, escorted Johnson back to his patrol car to be transported to the sheriff's station. In the car, Sergeant Monares asked Johnson for his current home address and his employer's contact information. During that conversation, Johnson admitted that he used methamphetamine to stay awake.

¶9 After Johnson's arrest, Thornton Police Officer Evan Potter arrived at the scene with Axel, a K-9 trained to detect several illegal drugs, including

methamphetamine, cocaine, and heroin, but not marijuana.[2] When Officer Potter led Axel around the vehicle to conduct a sniff, Axel alerted to the presence of an illegal drug near the driver's side door. Officer Potter opened the door, and Axel alerted again at the center console. Based on Axel's alerts, the officers searched the vehicle, in the process finding two firearms in Johnson's camouflage bag, methamphetamine in a jar in the console as well as in a bag on the passenger floorboard, and two shotguns in the trunk. They also discovered several identification documents belonging to people other than Johnson.

¶10 The People subsequently charged Johnson with one count each of unlawful possession of a controlled substance, § 18-18-403.5(1), (2)(a), C.R.S. (2023); criminal possession of an identification document, § 18-5-903.5(1), (2)(b), C.R.S. (2023); criminal possession of a financial device, § 18-5-903(1), (2)(b), C.R.S. (2023); and possession of identity theft tools, § 18-5-905, C.R.S. (2023). The People also charged

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[2] In *People v. McKnight*, this court held that if a drug-detection dog's sniff can detect marijuana—which a person can lawfully possess in small amounts under Colorado law post Amendment 64—the dog's sniff constitutes a search that must be justified by probable cause. 2019 CO 36, ¶¶ 41–43, 446 P.3d 397, 407–08 (citing Colo. Const. art. XVIII, § 16(3)). So long as a dog isn't trained to detect marijuana or other noncontraband items, however, the traditional rule stands that "walking a trained narcotics detection dog around a car that has not been unlawfully stopped or detained does not implicate the protections of either the Fourth Amendment or Article II, section 7 of the [Colorado] constitution." *People v. Mason*, 2013 CO 32, ¶ 10, 310 P.3d 1003, 1005.

Johnson with four special offender counts pursuant to section 18-18-407(1)(d)(II), C.R.S. (2023).

¶11 Johnson moved to suppress the evidence found in his car, contending that the officers subjected him to an investigative detention unsupported by reasonable suspicion, which led to his formal arrest without probable cause or a warrant in violation of his Fourth Amendment rights. At the suppression hearing, Deputy Bacigalupo testified that Johnson's failure to produce proof of insurance or a license was a traffic violation which, in his experience, generally resulted in the issuance of a summons but not a formal arrest. He clarified, however, that it was the discovery of the pipe in Johnson's pocket that prompted him to arrest Johnson for possession of drug paraphernalia.

¶12 The court granted Johnson's motion to suppress. It found that the officers, having witnessed Johnson make a U-turn and an additional left turn without signaling, were justified in stopping him because they had reasonable suspicion that he had committed a traffic violation under section 42-4-903(2), C.R.S. (2023). It concluded, as well, that the officers had a reasonable belief that Johnson could pose a threat to their safety based on the shell casing, folding knife, Johnson's admission that he had a shotgun in the trunk of his car, and the bag he wore around his chest. Accordingly, the court held that the officers were permitted to pat-down Johnson to ensure that he didn't pose a safety threat.

¶13 The court further determined that when Deputy Bacigalupo felt the pipe in Johnson's pocket, the officers had probable cause to believe Johnson possessed drug paraphernalia. And it observed that immediately after Deputy Bacigalupo discovered the pipe in Johnson's pocket, the Deputy placed Johnson in handcuffs and formally arrested him.

¶14 But the court then went on to find that the officers did not have reasonable suspicion that there were illegal drugs in Johnson's car or that it contained evidence of other criminal activity. Without that, the court concluded, the officers impermissibly prolonged Johnson's stop to wait for Axel's sniff. The court reached this conclusion, it seems, based on its recollection that Deputy Bacigalupo testified that he would have released Johnson with a summons based on the lane signal violation and his possession of drug paraphernalia. Thus, in the court's estimation, once Deputy Bacigalupo removed the pipe from Johnson, and Sergeant Monares confirmed there were no outstanding warrants for his arrest, the "investigation [for drug paraphernalia] had effectively concluded."

¶15 It was these factual findings that led the court to conclude the officers needed *additional* reasonable suspicion to believe that contraband existed in the car to prolong the stop for Axel's sniff. And because, in the court's view, additional reasonable suspicion was lacking, the stop was impermissibly extended, and the

free air sniff was unlawful. The court consequently suppressed the evidence discovered in Johnson's vehicle.

¶16 The People moved for reconsideration, arguing that (1) Johnson was lawfully arrested based on his possession of drug paraphernalia, and (2) the subsequent search of his vehicle was permissible following his arrest. According to the People, Johnson's stop wasn't impermissibly extended because probable cause developed during the pat-down search and he was placed under arrest for possession of drug paraphernalia.

¶17 The district court denied the People's motion. It again recognized that the officers' discovery of the pipe provided them with probable cause to believe that Johnson possessed drug paraphernalia. Even so, it nonetheless concluded that "[t]here is no indication in the record that [the] officers intended to effect a *full arrest* and transport of Mr. Johnson on the charge of possession of drug paraphernalia or the traffic offenses leading to the stop in this case." (Emphasis added.) In the court's view, the probable cause to arrest for possession of drug paraphernalia was insufficient as a basis to extend the stop for Axel's sniff. And because the officers completed their investigation and arrest of Johnson "well before the K9 sniff," their search of his car was likewise invalid, the court elaborated, since the officers lacked reasonable suspicion that it would contain evidence of the crime for which he was arrested.

¶18 The People then brought this interlocutory appeal.

II. Analysis

¶19 We begin by addressing the basis for and limits of our jurisdiction under C.A.R. 4.1, as well as the appropriate standard of review. Next, we turn to the law governing police-citizen contacts, including the standard for establishing reasonable suspicion to initiate an investigatory stop, the permissible scope of such stops, and the requirements for establishing probable cause to arrest a person. Then, we apply those principles to the record before us and ultimately conclude that the district court's finding that Johnson wasn't subject to a "full arrest" was clearly erroneous. Because the officers had probable cause to arrest Johnson for possession of drug paraphernalia, and did so, his continued detention was no longer for the purpose of an investigatory stop and, therefore, was not unlawfully extended.

¶20 Accordingly, we reverse the district court's suppression order.

A. Jurisdiction and Standard of Review

¶21 Under section 16-12-102(2), C.R.S. (2023), and C.A.R. 4.1(a), the People may file an interlocutory appeal from a district court's order granting a defendant's motion to suppress evidence.[3] Notably, interlocutory relief under C.A.R. 4.1 is

[3] The People certified, as they are required to, that they aren't filing this interlocutory appeal "for the purpose of delay" and that the evidence suppressed

unavailable to a defendant. *People v. Brown*, 2022 CO 11, ¶ 13, 504 P.3d 970, 974–75; *see also People v. Ealum*, 211 P.3d 48, 52 (Colo. 2009) ("C.A.R. 4.1 provides an appeal for the prosecution rather than for the defendant.").

¶22 As with a district court's order suppressing evidence, the scope of an investigatory stop presents a mixed question of law and fact. *People v. Deaner*, 2022 CO 43, ¶ 10, 517 P.3d 66, 69; *People v. White*, 2023 CO 43, ¶ 25, 531 P.3d 397, 403. We accept and defer to a court's factual findings unless they are clearly erroneous or draw no support from competent evidence in the record. *People v. Ferguson*, 227 P.3d 510, 512–13 (Colo. 2010); *People v. Chavez-Barragan*, 2016 CO 66, ¶ 18, 379 P.3d 330, 335 (*Chavez-Barragan I*). We review the legal effect of those facts, however, de novo. *White*, ¶ 25, 531 P.3d at 403.

B. Pertinent Fourth Amendment Legal Principles

¶23 The Fourth Amendment to the United States Constitution guards citizens against "unreasonable searches and seizures" by the police.[4] U.S. Const. amend. IV; *see also* U.S. Const. amend. XIV. Absent an exception, a warrantless

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"is a substantial part of the proof of the charges pending against [Johnson]." *See* § 16-12-102(2); Rule 4.1(a).

[4] The Colorado Constitution likewise protects citizens from unreasonable searches and seizures. Colo. Const. art. II, § 7. But, because the challenged ruling relied exclusively on Fourth Amendment jurisprudence, we limit our analysis accordingly.

search or seizure of a person is presumed unreasonable and in violation of the Fourth Amendment. *People v. Allen*, 2019 CO 88, ¶ 15, 450 P.3d 724, 728.

¶24 We "frame [our] discussion" of the Fourth Amendment based on the police-citizen contact at issue, categorizing the contact as either: (1) a consensual encounter; (2) an intermediate form of intrusion, such as an investigatory stop or limited search; or (3) an arrest or full-scale search. *White*, ¶ 28, 531 P.3d at 404. Only the latter two types of contact are seizures and, therefore, enjoy the Fourth Amendment's protections. *People v. Marujo*, 192 P.3d 1003, 1006 (Colo. 2008). Because this case began with police stopping Johnson for a traffic violation, it falls, at least initially, under the second, intermediate category of intrusion: an investigatory stop. *Chavez-Barragan I*, ¶ 19, 379 P.3d at 335.

¶25 As the name suggests, investigatory stops are justified "only for the purpose of confirming or dispelling" an officer's reasonable suspicion that a person has committed, is committing, or is about to commit a crime. *People v. Ball*, 2017 CO 108, ¶ 9, 407 P.3d 580, 583–84 (citing *United States v. Sharpe*, 470 U.S. 675, 686 (1985)); *see also Terry v. Ohio*, 392 U.S. 1, 22 (1968). Reasonable suspicion exists where there's a "specific and articulable basis in fact for suspecting that criminal activity has taken place, is in progress, or is about to occur." *People v. Archuleta*, 980 P.2d 509, 512 (Colo. 1999).

¶26 Even if reasonable suspicion of a traffic violation exists to support a person's seizure, such seizure can become unreasonable if it is "prolonged beyond the time reasonably required to complete" the purpose of the stop. *Chavez-Barragan I*, ¶ 20, 379 P.3d at 335 (quoting *Illinois v. Caballes*, 543 U.S. 405, 407 (2005)). Indeed, "the tolerable duration of police inquiries in the traffic-stop context is determined by the seizure's 'mission'—to address the traffic violation that warranted the stop" and "attend to related safety concerns." *Rodriguez v. United States*, 575 U.S. 348, 354 (2015) (quoting *Caballes*, 543 U.S. at 407).

¶27 Safety concerns can arise during an investigatory stop. An officer who has an articulable and objectively reasonable belief that a suspect is armed and dangerous may conduct a "minimally intrusive frisk, or pat-down" to check for weapons. *People v. Fields*, 2018 CO 2, ¶ 12, 411 P.3d 661, 665; *see also People v. Brant*, 252 P.3d 459, 463 (Colo. 2011). But the scope of a lawful search during an investigatory stop isn't strictly limited to the suspect's body. "[D]uring a lawful roadside encounter, an officer is entitled to conduct a protective search" not only of the suspect's person, but also "of the areas in a vehicle's passenger compartment where a weapon may be placed or concealed." *Allen*, ¶ 24, 450 P.3d at 730 (citing *Michigan v. Long*, 463 U.S. 1032, 1049 (1983)).

¶28 While the purpose of a protective search isn't "to discover evidence of [a] crime," sometimes, that's exactly what it reveals. *People v. Delacruz*, 2016 CO 76,

¶ 16, 384 P.3d 349, 353. When it does, "the plain feel doctrine allows the police to seize contraband discovered through the sense of touch during an otherwise lawful search." *Brant*, 252 P.3d at 463. If an officer discovers contraband during a legitimate protective search, they are not "required to ignore [it], and the Fourth Amendment does not require its suppression." *Id.* at 464 (quoting *Long*, 463 U.S. at 1050).

¶29 A warrantless arrest—which may follow from an investigatory stop—is considered unreasonable unless it is supported by probable cause. *Brown*, ¶ 17, 504 P.3d at 975. Probable cause to arrest exists where reasonable, trustworthy information exists sufficient to warrant a reasonably cautious officer's belief that an arrestee has committed a crime. *Fields*, ¶ 14, 411 P.3d at 666; *People v. Castaneda*, 249 P.3d 1119, 1123 (Colo. 2011). When determining whether probable cause exists, we consider the totality of the circumstances, aiming to "make a practical, common-sense decision whether a fair probability exists" that the suspect committed a crime or that a search would reveal evidence of criminal activity. *People v. Bailey*, 2018 CO 84, ¶ 21, 427 P.3d 821, 827 (quoting *People v. Altman*, 960 P.2d 1164, 1167 (Colo. 1998)); *see also Fields*, ¶ 14, 411 P.3d at 666.

¶30 Indeed, "[t]he probable cause standard does not lend itself to mathematical certainties and should not be laden with hypertechnical interpretations or rigid legal rules." *People v. Smith*, 2022 CO 38, ¶ 30, 511 P.3d 647, 653 (quoting *Bailey*,

¶ 21, 427 P.3d at 827). Importantly, if probable cause to arrest does develop during a lawful investigatory stop, a suspect's "continued detention is no longer attributable to an investigatory stop at all." *Ball*, ¶ 11, 407 P.3d at 584. Instead, probable cause justifies a suspect's detention as a lawful arrest "without requiring consideration of the scope of an investigatory stop." *White*, ¶ 59, 531 P.3d at 409 (Hood, J., concurring in the judgment).

¶31 Having outlined the Fourth Amendment's protections and applicable standards, we now apply these principles to the facts of this case.

C. The Officers Did Not Unlawfully Extend Johnson's Investigatory Stop

¶32 The People argue that the district court erred by suppressing the evidence discovered in Johnson's car based on the court's conclusion that the officers unlawfully extended the investigatory stop after they arrested Johnson. They contend that Deputy Bacigalupo's discovery of the pipe supplied the officers with probable cause to arrest Johnson for possession of drug paraphernalia, obviating any requirement for additional reasonable suspicion to extend the stop. We agree.

¶33 The record here supports the court's finding that the officers had probable cause to arrest Johnson for possession of drug paraphernalia. It also supports the court's conclusion that Officer Bacigalupo put Johnson in handcuffs and arrested him after the officer discovered the bulbous pipe in Johnson's pocket and Johnson admitted that he had used the pipe the night before. The court's subsequent

finding that Johnson somehow wasn't subjected to a "full arrest" was, however, clearly erroneous. It was this factual error upon which the court's erroneous legal conclusion—that the investigative stop was unlawfully extended—rested. Because Johnson was arrested, the officers had a lawful basis for Johnson's continued seizure, and the court erred by concluding his stop was impermissibly extended and that, accordingly, the fruits of the search of his vehicle had to be suppressed. Therefore, we reverse the court's order suppressing the evidence found in Johnson's car.

1. The District Court's Finding that Johnson Was Not Arrested Is Clearly Erroneous

¶34 The People contend that the district court's findings regarding the nature of Johnson's seizure were clearly erroneous. Specifically, they take issue with the court's finding that the officers did not intend to effect a *full arrest* and transport of Johnson on the charge of possession of drug paraphernalia or the offenses leading to the stop in this case. Again, we agree that the court erred.

¶35 The development of probable cause to arrest stops the clock on an investigatory stop "whether a formal arrest has yet been announced or not." *Ball*, ¶ 11, 407 P.3d at 584. In this case, the district court initially found that Johnson had been arrested. But then, confusingly, the court made a 180-degree turn when denying the People's motion for reconsideration, finding that Johnson had not been formally arrested. The court got it right the first time but missed the mark

the second time, as contrary to that finding, Johnson was handcuffed and placed under arrest. Where a district court's "findings of fact are clearly erroneous or not supported by the record, we set them aside." *People v. Kaiser*, 32 P.3d 480, 483 (Colo. 2001). The district court here rested its determination that the officers impermissibly extended Johnson's detention on its findings that (1) Johnson's possession of drug paraphernalia would result in his release on a summons and (2) Johnson wasn't subject to a "full arrest." Put simply, the record doesn't support either of these findings.

¶36 As to the first, it appears the court misremembered or misunderstood testimony from the suppression hearing that Johnson's possession of drug paraphernalia was an offense that would lead only to the issuance of a summons, rather than a full arrest. Deputy Bacigalupo testified that Johnson's *failure to provide proof of insurance or a license* was a traffic violation that generally resulted only in the issuance of a summons. No evidence in the record supports the notion that the officers would have issued a summons based on a suspect's possession of drug paraphernalia.

¶37 We likewise conclude that the court's finding that Johnson had not been formally arrested enjoys no record support. In the court's ruling at the suppression hearing, it initially agreed with the People that Deputy Bacigalupo placed Johnson under arrest upon discovering the pipe in his pocket. But in its

order denying the People's motion to reconsider, the court reversed course, finding that nothing in the record indicated that the officers intended to "effect a *full arrest* and transport of Mr. Johnson on the charge of possession of drug paraphernalia." (Emphasis added.)

¶38 Our independent review of the record reveals that the court was right the first time around. When Deputy Bacigalupo discovered the pipe, he handcuffed Johnson and attempted to read him his *Miranda* rights. Sergeant Monares then led Johnson to his patrol vehicle and asked him routine booking questions. These actions are consistent with a formal arrest. *See People v. Cline*, 2019 CO 33, ¶ 18, 439 P.3d 1232, 1237 (surveying Colorado caselaw in the area of custody for *Miranda* purposes and observing that actions typically associated with an arrest, rather than an investigatory stop, include use of physical restraints, such as handcuffs; an officer making clear to a suspect that he won't be released after the stop; and removing a suspect to a secluded place, including a patrol car).

¶39 Therefore, the court's findings in this regard are clearly erroneous.

2. The Officers Had Probable Cause to Arrest Johnson for the Possession of Drug Paraphernalia Which Justified His Continued Detention

¶40 An investigatory stop justified solely for the purpose of issuing the driver a traffic ticket "can become unlawful if it is prolonged beyond the time reasonably required to complete that mission." *People v. Mason*, 2013 CO 32, ¶ 10, 310 P.3d

1003, 1005 (citing *Caballes*, 543 U.S. at 407). But, as noted, if "probable cause for an arrest has been acquired," a stop no longer needs to be "justified as an investigatory stop but is rather justified as an arrest." *Fields*, ¶ 12, 411 P.3d at 665. That is, the existence of probable cause removes a suspect's detention from the ambit of an investigatory stop and instead justifies the suspect's seizure as a lawful arrest. *White*, ¶ 59, 531 P.3d at 409 (Hood, J., concurring in the judgment) (citing *Ball*, ¶ 11, 407 P.3d at 584).

¶41 Looking at Johnson's encounter with law enforcement from the time of the stop forward, we agree with the district court that probable cause to arrest Johnson for possession of drug paraphernalia developed during the investigative stop. To begin, the officers had reasonable suspicion to believe that Johnson had committed a traffic violation, justifying his initial seizure. *See People v. Chavez-Barragan*, 2016 CO 16, ¶ 10, 365 P.3d 981, 983 (*Chavez-Barragan II*) ("Suspicion of even a minor traffic offense can provide the basis for a stop."); *see also* § 42-4-903(2) (requiring a "signal of intention to turn right or left" when operating a vehicle). Then, during the investigatory stop, the officers made several observations that caused them to be concerned that Johnson might be armed and dangerous. These observations included (1) the empty shell casing in his center console; (2) Johnson wearing a bag the officers understood to be often used to carry weapons, and to which a folding knife was attached; and (3) Johnson's admission that there was a shotgun in the

trunk. On these facts, the officers had an articulable and objectively reasonable belief that Johnson was armed and dangerous and, accordingly, were permitted to conduct a minimally intrusive frisk or pat-down search of Johnson for safety purposes. *Fields*, ¶ 12, 411 P.3d at 665 (permitting, for an officer's protection, "a minimally intrusive frisk, or pat-down" for weapons during an investigatory stop).

¶42 Deputy Bacigalupo testified at the suppression hearing that, while patting Johnson down, he plainly felt, without any manipulation to Johnson's pocket, what he immediately recognized based on his training and experience as a bulbous pipe. The pipe, the Deputy explained, was a type of contraband that he encountered almost every day at work. Johnson then admitted to having smoked from the pipe the night before. Not long thereafter, he also admitted that he used methamphetamine to stay awake. Like the district court, we conclude that the discovery of this pipe provided the officers with probable cause to believe that Johnson had committed the offense of possession of drug paraphernalia. *See* § 18-18-428, C.R.S. (2023) (criminalizing the possession of drug paraphernalia and designating it a petty drug offense); *see also* § 18-18-426(1)(g)(I), C.R.S. (2023) (defining drug paraphernalia to include any "[m]etal, wooden, acrylic, glass, stone, plastic, or ceramic pipes"); § 16-3-102(1)(c), C.R.S. (2023) (authorizing law enforcement to effect an arrest when they have probable cause to believe that a

person committed an offense); *see, e.g.*, *People v. Nelson*, 2012 COA 37, ¶¶ 30–31, 296 P.3d 177, 185 (concluding that the officers' discovery of a glass pipe supplied them with probable cause that evidence of criminality existed even though there are possible legal uses of such pipes).

¶43 We part ways with the district court, however, in terms of its determination that the officers needed new, additional reasonable suspicion to lawfully extend Johnson's detention. The court was correct when it initially held that the officers had probable cause to arrest Johnson for possession of drug paraphernalia. As we explained, the court was correct as well that the officers handcuffed Johnson, placed him under arrest, and escorted him to the back of one of their vehicles. But the court veered off course based on its apparent recollection of Deputy Bacigalupo's testimony regarding the summons. Since Johnson was placed under arrest, this "render[ed] superfluous any evaluation of the scope of [his] investigatory stop." *White*, ¶ 61, 531 P.3d at 409 (Hood, J., concurring in the judgment). That is, the propriety of Axel's sniff and the officers' search of Johnson's vehicle need not be examined as an extension of his original investigatory stop. Rather, the question for the court was whether the evidence seized from Johnson's car was lawfully discovered following his arrest.

¶44 Accordingly, we reverse the district court's suppression order on this basis.

III. Conclusion

¶45 Because the officers did not unlawfully prolong their investigatory stop of Johnson, we reverse the district court's order suppressing the evidence discovered in his vehicle on this basis and remand the case for the court to consider whether that evidence was lawfully discovered following Johnson's arrest.

¶46 **JUSTICE BERKENKOTTER**, joined by **CHIEF JUSTICE BOATRIGHT, JUSTICE MÁRQUEZ, JUSTICE HOOD, JUSTICE GABRIEL, JUSTICE HART,** and **JUSTICE SAMOUR**, concurred in the judgment.